

BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE

RE:
Mental Health Counselor License of

AMANDA RENNOLET
License No. 082255
Respondent

CASE NO. 19-0237

**COMBINED STATEMENT OF
CHARGES, SETTLEMENT
AGREEMENT, AND FINAL ORDER**

COME NOW the Iowa Board of Behavioral Science (“Board”) and Amanda Rennolet (“Respondent”), 3501 Floyd Blvd, Sioux City IA 51108, and enter into this Combined Statement of Charges, Settlement Agreement, and Final Order (“Order”) pursuant to Iowa Code sections 17A.10 and 272C.3(4), and 645 IAC 12. The Board has jurisdiction over Respondent and the subject matter of this case pursuant to Iowa Code chapters 17A, 147, 154D, and 272C, and 645 IAC 33.

A. STATEMENT OF CHARGES

COUNT I

1. Respondent is charged with failing to have accurate documentation in client records to reflect the services provided in violation of 645 IAC 31.12(1) and (3), and may be disciplined pursuant to Iowa Code section 147.55(8) and 645 IAC 33.2(13).

B. FACTUAL CIRCUMSTANCES

2. Respondent holds mental health counselor license number 082255, which is currently active through September 30, 2022.

3. An investigation of Respondent’s clinical records revealed multiple instances of session times overlapping by more than 5 minutes and multiple sessions being billed at a higher rate than what the documentation supported based on session times. The records audited were from the time period of October 2016 through December 2019.

4. Respondent’s employee file reflects that the timing and billing rate issues were never revealed and addressed during Respondent’s employment. Respondent’s employment file, including documentation audits, supervision reports and annual reviews, complimented Respondent’s documentation and did not address any concern regarding timing and billing rate issues.

C. SETTLEMENT AGREEMENT AND FINAL ORDER

5. The Board has jurisdiction over the parties and the subject matter of this proceeding.

6. Respondent acknowledges that the allegations in the Statement of Charges, if proven in a contested case hearing, would constitute grounds for the discipline agreed to in this Order.

7. Execution of this Order constitutes the resolution of a contested case. Respondent has a right to hearing before the Board on the charges, but Respondent waives the right to hearing and all attendant rights, including the right to appeal or seek judicial review of the Board's action, by freely and voluntarily entering into this Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following a contested case hearing.

8. Respondent acknowledges that she has the right to be represented by counsel on this matter.

9. Respondent agrees that the State's counsel may present this Order to the Board and may have *ex parte* communications with the Board while presenting it.

10. This Order is subject to approval by a majority of the full Board. If the Board does not approve this Order, it shall be of no force or effect to either party, and shall not be admissible for any purpose in further proceedings in this matter. If the Board approves this Order, it shall be the full and final resolution of this matter.

11. This Order shall be part of Respondent's permanent record and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

12. This Order shall not be binding as to any new complaints received by the Board.

13. Respondent understands the Board is required by federal law to report any adverse action to the National Practitioner Data Bank.

14. This Order, when fully executed, is a public record and is available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C.

15. The Board's approval of this Order shall constitute a **FINAL ORDER** of the Board.

IT IS THEREFORE ORDERED:

16. Respondent's license shall be placed on **PROBATION** for a period of two (2) years, subject to the following conditions:

- a. Respondent shall only engage in the practice of mental health counseling as part of an agency or group practice with oversight over Respondent by at least one independently licensed mental health provider.
- b. Within thirty (30) days or prior to resuming practice as a mental health counselor, Respondent shall submit the name and credentials of a proposed practice monitor and a proposed practice monitoring plan to the Board for approval. The practice monitor must be an Iowa licensed mental health counselor or marital and family therapist with no disciplinary history and training in supervision who can objectively monitor Respondent's practice. Respondent shall meet with her Board-approved practice monitor at least once per month during the probationary period to review Respondent's compliance with this Order and Respondent's clinical practice. As part of

the review of Respondent's clinical practice, Respondent's practice monitor shall review randomly selected records (clinical and billing) from a minimum of ten (10) of Respondent's clients seen in the previous month. Respondent is responsible for ensuring the quarterly reports are timely submitted by her practice monitor.

- c. Within sixty (60) days or prior to resuming practice as a mental health counselor, Respondent shall complete six (6) hours of **CONTINUING EDUCATION** consisting of no less than three (3) hours related to billing/recordkeeping and no less than three (3) hours related to ethics. Respondent shall submit certificates of course completion to the Board via email to plpublic@idph.iowa.gov.
- d. Respondent shall appear before the Board upon request for the purpose of reviewing her performance during the probationary period. Respondent shall be given reasonable notice of the date, time, and place for such appearances.
- e. Respondent is responsible for all costs incurred to comply with these terms and conditions.
- f. Respondent shall provide written notification to the Board of any change of home address, telephone number, or place of employment within ten (10) days of such a change.
- g. Respondent and Respondent's practice monitor shall each submit quarterly reports to the Board. Each year, the Quarter 1 (January-March) report is due no later than April 5th; the Quarter 2 (April-June) report is due no later than July 5th; the Quarter 3 (July-September) report is due no later than October 5th; and the Quarter 4 (October-December) report is due no later than January 5th.
- h. The notifications and reports required to be submitted to the Board pursuant to this paragraph should be mailed to the Iowa Board of Behavioral Science, Attn: Tony Alden, Bureau of Professional Licensure, Iowa Department of Public Health, Lucas State Office Building—5th Floor, 321 East 12th St., Des Moines, IA 50319, or emailed to plpublic@idph.iowa.gov.
- i. Only time periods in which Respondent is practicing as a mental health counselor with a practice monitor will count towards completion of the two (2) years of probation. If Respondent is not working as a mental health counselor, the probationary term will be extended until she completes two (2) years of monitored practice.
- j. Respondent may request early release from probation after one (1) year of monitored practice. The Board retains the discretion to determine whether early release is appropriate, but shall consider Respondent's compliance with the probationary period when making such a decision.

17. Should Respondent violate the terms of this Order, the Board may initiate action to impose other licensee discipline as authorized by Iowa Code chapters 147, 154D, and 272C and 645 IAC 13 and 33.

11/29/21
Date

Amanda Rennolet
AMANDA RENNOLET
Respondent

This Combined Statement of Charges, Settlement Agreement, and Final Order is approved by the Iowa Board of Behavioral Science on December 9, 2021.

/s/ Tony Alden
Tony Alden, Board Executive
Iowa Board of Behavioral Science